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Date: 1/8/19

ORDINANCE NO. _____

**ENTITLED: "AN ORDINANCE DELEGATING THE REVIEW AUTHORITY
AUTHORIZED BY W.S. § 34-12-103(B) TO THE DIRECTOR OF THE CITY
OF CHEYENNE PLANNING AND DEVELOPMENT DEPARTMENT."**

**BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE,
WYOMING:**

Section 1. That on March 12, 2018, the Sixty-Fourth Legislature of the State of Wyoming adopted House Bill 0014, 2018 Wyoming Session Laws Chapter 83, relating to municipalities: (a) restricting extraterritorial jurisdiction asserted by a municipality; (b) specifying applicability; (c) providing for coordination between a county and municipality; (d) making conforming amendments; and (e) providing for an effective date.

Section 2. That pursuant to W.S. § 34-12-103(b), the Board of County Commissioners is required to, upon receipt of a plat application for plat within one (1) mile of a First Class city or town, solicit comments from the governing body of the city or town relating to impacts to the city or town's infrastructure or other development plans resulting from the proposed plat and development; and that the Board of County Commissioners shall consider the city or town's comments that are received by the board at least twenty (20) business days prior to the scheduled final consideration of the plat proposal and shall respond in writing to the city or town about any items of disagreement.

Section 3. That the City of Cheyenne Planning and Development Department consists of professionals knowledgeable in planning, development, platting, and coordinating comments on potential effects on applicable infrastructure systems.

Section 4. That the review authority authorized by W.S. § 34-12-103(b) is hereby delegated to the Director of the City of Cheyenne Planning and Development Department, resulting in quality review, efficiency in government operations, not burden the Governing Body with additional review procedures, and not delay the county development process.

Section 5. That sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 6. That this ordinance shall be in full force and effect upon its publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

Marian J. Orr, Mayor

(SEAL)

Attest:

Kristina F. Jones, City Clerk

Published: _____
Wyoming Tribune Eagle



A COMMUNITY OF CHOICE

Planning and Development Department
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MEMO

TO: Mayor Marian J. Orr

CC: City Council

FROM: Charles W. Bloom, AICP, Planning and Development Director

SUBJECT: Proposed Ordinance delegating the review authority authorized by W.S. 34-12-103(b) to the Director of the City of Cheyenne Planning and Development Department

DATE: January 14, 2019

Background

This proposed Ordinance is in response to legislation adopted by the Sixty-Fourth Legislature of the State of Wyoming on March 12, 2018. House Bill 0014, 2018 Wyoming Session Laws Chapter 83, relates to municipalities and modified the extraterritorial jurisdiction for municipalities. This is the basis for the City's review of County subdivisions within one-mile of City limits.

This law became effective January 1, 2019. County plats submitted prior to January 1, 2019 have been processed in accordance with prior statutes and require approval by the City Council. The full text of the legislation and amendments (House Bill 0014) is attached.

The legislation removed the requirement that plats located within one-mile of city limits, and in areas regulated by a county comprehensive plan, be jointly approved by the cities and counties. It was replaced with a city's ability to "comment" on how the proposed plat effected the city's infrastructure or other development plans. Identified in the legislation were requirements for solicitation of city comments, consideration of city comments by the county commissioners, and a requirement for the county commissioners to respond to items of disagreement. Specific review criteria and for county approval was also incorporated in the legislation. The legislation does not distinguish between preliminary, final or administrative plat.

Summary of Processes and County-Approval Criteria

The comment process defined in the legislation is as follows:

1. The County is required to solicit comments from the City upon receipt of a plat application.
2. The Board of County Commissioners is required to consider any comments received at least 20-business days prior to final consideration (Board of County Commissioner action) and they shall respond in writing to the City about any items of disagreement.
3. 20-business days after consideration of City comments, the Board of County Commissioners may elect to approve the subdivision regardless of City-comment.

The current process takes approximately 60 days and is as follows:

1. Minimum 21-day staff review period based on submittal date.
2. Planning Commission consideration and recommendation to Council.
3. City Council introduction and referral to Public Services Committee.
4. Consideration and recommendation by Public Service Committee.
5. Approval of the plat (preliminary and final by resolution) by the City Council.

Note: Typically, County plats have been processed as expedited plats which allow concurrent review of preliminary and final plats.

The legislation also established review criteria as follows:

1. The plat is consistent with any applicable city and county land use or comprehensive plan.
2. The plat conforms to the adopted major street plan.
3. That streets, roads and alleys within the plat are dedicated as rights-of-way.
4. That easements within the plat are in place for existing and proposed utilities.
5. The plat conforms to any additional criteria agreed upon by the City or County by agreement or joint plan.

The current process does not define any clear parameters for plat approval that can be enforced by the City.

Effect of Proposed Ordinance

The Ordinance would establish an efficient and clear process that addresses common concerns associated with these plats. Staff would provide comments directly to County Planning staff in lieu of bringing the plat to the City Council for review. Delegating the review responsibility to staff will allow staff to coordinate reviews with appropriate staff and outside agencies, Metropolitan Planning Origination (MPO), Engineering, Community Recreation and Events, and the Board of Public Utilities; however, it will remove the review and approval processes by the Planning Commission and City Council.

Removal of the review and approval processes will save staff time and the City money by eliminating the need for detailed staff reports, presentations at public meetings

(Planning Commission and City Council and Public Services Committee), legal notice requirements (preparation and publication) and legal review of associated resolutions.

Next Steps

Staff began discussions with the County Planning Department and the County Attorney in November regarding development of a Memorandum of Understanding (MOU) that will clearly define processes for review and establish additional review criteria. The MOU is still in development and is believed that it will strengthen the review processes between the two entities once enacted. The MOU suggests additional criteria to require connectivity between subdivisions and connections with existing roads, and establishes clear review times for comments and responses to comments.

Staff notes that the Planning and Development Department will not be 100% removed from the process -even if the MOU fails to be adopted. The MPO reviews all County plats within the Metropolitan Planning Area which encompasses the one-mile jurisdiction. Their reviews look for compliance with the Major Street Plan, the Comprehensive Plan, and frequently address the issues that are envisioned to be components of the MOU. The County, just like the City, has the obligation to take their comments into consideration when reviewing and approving all plats.

ENROLLED ACT NO. 49, HOUSE OF REPRESENTATIVES

SIXTY-FOURTH LEGISLATURE OF THE STATE OF WYOMING
2018 BUDGET SESSION

AN ACT relating to municipalities; restricting extraterritorial jurisdiction asserted by a municipality; specifying applicability; providing for coordination between a county and municipality; making conforming amendments; and providing for an effective date.

Be It Enacted by the Legislature of the State of Wyoming:

Section 1. W.S. 15-3-202(b)(intro) and (ii), 15-9-103(a)(ii) and 34-12-103 are amended to read:

15-3-202. Jurisdiction beyond corporate limits; exception.

(b) The mayor has ~~such~~ jurisdiction as may be vested in him by ordinance:

(ii) Except as otherwise provided by this paragraph, in all matters excepting taxation within one-half (1/2) mile of the corporate limits of the city. The board of county commissioners of any county containing any area over which jurisdiction has been asserted pursuant to this paragraph may enact a resolution nullifying the ordinance as to any unincorporated area of the county subject to the ordinance. Upon the effective date of the resolution the ordinance shall no longer be effective as to the unincorporated area of the county specified in the resolution. This paragraph shall not apply to any unincorporated area for which a county has officially adopted a comprehensive plan pursuant to W.S. 18-5-202(b). With the consent of a municipality, a comprehensive plan or a plan under W.S. 9-8-301 may delegate functions to the municipality in whole or in part and exclusively or concurrently with county performance of the functions.

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15-9-103. Definitions.

(a) As used in this chapter, unless a different meaning is clearly indicated by the context:

(ii) "Area of operation" means the area within the corporate limits of the municipality and the area within five (5) miles of those limits, except that it ~~does not~~ may include any area which lies within the territorial boundaries of another incorporated city or town ~~unless if~~ a resolution has been adopted by the governing body of the other city or town ~~declaring a need therefor~~ consenting to the inclusion and it may include any unincorporated area within five (5) miles of the corporate limits of the municipality if a resolution has been adopted by the county commissioners of the unincorporated area consenting to the inclusion;

34-12-103. Contents of plat; acknowledgment; approval by county commissioners or governing body of cities or towns; filing and recording.

(a) Every ~~such~~ plat shall contain a statement to the effect that "the above or foregoing subdivision of (here insert a correct description of the land or parcel subdivided) as appears on this plat, is with the free consent, and in accordance with the desires of the undersigned owners and proprietors", which shall be signed by the owners and proprietors, and shall be duly acknowledged before some officer authorized to take the acknowledgement of deeds. The plat shall meet the approval of the board of county commissioners if it is of land situated without the boundaries of any city or town or by the governing body of the city or town if situated within the boundaries of such city or town. ~~When thus executed,~~

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~~acknowledged and approved, said plat shall be filed for record and recorded in the office of the clerk of the proper county; Provided, however, that any such plat of land which is adjacent to any incorporated city or town, or within one (1) mile of the boundaries of any such city or town and which is not subject to regulation under and pursuant to a comprehensive plan adopted pursuant to W.S. 18-5-202(b), shall be jointly approved by both the board of county commissioners of said the county and the governing body of said the city or town before same the plat shall be filed and recorded in the office of the county clerk. as aforesaid.~~

(b) If a city or town approval is not required under this section and the plat is located within one (1) mile of the boundaries of a first class city or town, or within one-half (1/2) mile of a town with a population of less than four thousand (4,000), the board of county commissioners, upon receipt of a plat application, shall solicit comments from the governing body of the city or town relating to impacts to the city or town's infrastructure or other development plans resulting from the proposed plat and development. The board shall consider the city or town's comments that are received by the board at least twenty (20) business days prior to the scheduled final consideration of the plat proposal and shall respond in writing to the city or town about any items of disagreement. To the extent practical, the board of county commissioners shall ensure that a plat application meets the following:

(i) Is consistent with any applicable city and county land use or comprehensive plan;

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(ii) Conforms to any adopted street plan of the city, town or county;

(iii) Contains all areas for streets, roads and alleys that are dedicated rights-of-way;

(iv) Contains dedicated easements for all existing and proposed utilities; and

(v) Contains any additional criteria the governing body of the city or town and the board of county commissioners agree to through a jointly adopted plan or voluntary agreement.

(c) When executed, acknowledged and approved as provided in this section, the plat shall be filed and recorded in the office of the clerk of the proper county.

ORIGINAL HOUSE
BILL NO. HB0014

ENGROSSED

ENROLLED ACT NO. 49, HOUSE OF REPRESENTATIVES

SIXTY-FOURTH LEGISLATURE OF THE STATE OF WYOMING
2018 BUDGET SESSION

Section 2. This act is effective January 1, 2019.

(END)

Speaker of the House

President of the Senate

Governor

TIME APPROVED: _____

DATE APPROVED: _____

I hereby certify that this act originated in the House.

Chief Clerk